

**JUSTIFICATION AND APPROVAL
FOR OTHER THAN FULL AND OPEN COMPETITION
SPRDL1-25-R-0161**

1. Contracting Agency: Defense Logistics Agency DLA Land Warren (DLA-WRN).

2. Description of Action: DLA-WRN proposes to award a new firm-fixed-price, five-year, Indefinite Delivery Indefinite Quantity contract for National Stock Number (NSN) 3950-01-213-1623, Hoist Assembly, Truck. Manufacturing is restricted to Grove U.S. LLC doing business as (DBA) Manitowoc Crane Group, Commercial and Government Entity (CAGE) code 12361, or an offeror providing the product of the approved source for part number 6-974-000796. Army Working Capital Funds will be used for the procurement.

3. Description of Supplies/Services: NSN 3950-01-213-1623 is a Hoist Assembly, Truck, used on the Heavy Expanded Mobility Tactical Truck (HEMTT) Wreckers. This hoist assembly is the component that is mounted to the crane mast that lifts the load. The deliverables for this contract are for a minimum five-year quantity of nine each, with a maximum five-year quantity of 225 each. The maximum value of this contract is estimated to be [REDACTED]

Acquisition Method Code (AMC):

3 - Acquire, for the second or subsequent time, directly from the actual manufacturer.

Acquisition Method Suffix Code (AMSC):

R - The data or the rights to use the data needed to purchase this part from additional sources are not owned by the Government and it has been determined that it is uneconomical to purchase them.

4. Authority Cited: The statutory authority permitting other than full and open competition for this effort is 10 United States Code (U.S.C.) 3204(a)(1) as implemented by Federal Acquisition Regulation (FAR) 6.302-1, Only One Responsible Source and No Other Supplies or Services Will Satisfy Agency Requirements.

5. Reason for Authority Cited: [REDACTED]

[REDACTED]

The Government does not have rights to the Technical Data Package (TDP) or specifications.

The sole approved manufacturer for this part is Grove U.S. LLC (Grove) DBA Manitowoc Company, Inc. Grove is uniquely qualified to manufacture this part because of the technical data it owns and physical equipment to produce the part. Due to the parts originating from the same company and not owning the technical data to compete with other companies this part should be classified as sole source. [REDACTED]

[REDACTED]

Based on current calculations, Ground Vehicle System Center Sustainment Engineering does not recommend the Reverse Engineering course of action for this hoist assembly. The Government would not be able to recover, through subsequent competition, the additional costs involved in reverse engineering the item to create a new and competitive Hoist Assembly TDP. [REDACTED]

[REDACTED]

[REDACTED]

6. Efforts to Obtain Competition:

- a. Effective competition: Due to the reasons cited in Section 5, the Government is not pursuing competition for this item. The notices required by FAR 5.201 shall be published, and any bids or proposals received shall be considered.
- b. Subcontracting competition: Unless the contract is awarded to a small business, the solicitation and resulting contract will include FAR clauses 52.219-8, "Utilization of Small Business Concerns", 52.244-5, "Competition in Subcontracting", 52.219-16, "Liquidated Damages--Subcontracting Plan", and Defense Federal Acquisition Regulation Supplement 252.219-7003, "Small Business Subcontracting Plan (DoD Contracts)", to maximize small business opportunities and utilization.

7. Actions to Increase Competition: There are no plans to increase competition for future procurements due to the reasons cited above. There are no contractors currently in the process of being qualified as an alternate source of supply for this item. At this time, there are no current or planned efforts to qualify additional sources since the Government does not possess a fully defined and validated TDP for this item. The source of supply, Grove (CAGE 12361), (DBA Manitowoc Crane Group) (CAGE 12361), owns the detailed technical data regarding this item.

8. Market Research: A Sources Sought Notice was posted to SAM.gov on 7 May 2025, and was open for 14 days.

One response was received on 9 May 2025 from BHPE LLC (CAGE 9SWS7) via email. BHPE LLC is a Small Disadvantaged Veteran Owned Small Business which responds to Sources Sought Notices frequently but shows no further interest. The Contract Specialist requested evidence that BHPE LLC could provide the product of the approved source. No further correspondence has been received.

Oshkosh Defense (CAGE 75Q65) is currently listed as an advisory reference to this NSN under part number 6HB60 and is not a valid source for this procurement. No other responses were received.

U.S. Army Combat Capabilities Development Command Engineering completed web-based market research on 9 April 2025, searching for companies that do telescopic lifting, load bearing systems, manufacture crane and hoist equipment, and mobile lifting equipment.

Hoist Assembly was searched online to find suitable competition. Keywords used during the search were hoist assembly, crane with 25,000-pound lift capability, hoist 25,000

pounds, mobile hoist manufacturers, and telescopic lifting equipment. This provided several results including hoists from Allied Power Products, Liftmoore, Caldwell Inc, Torqhoist, J.D. Neuhaus, and Prowinch. Without the complete technical data for this part an accurate comparison could not be found. The component strength, collapsibility, cable capacity, maximum load, layout, bolt pattern, hydraulic/air connections would all have to be identical or adjustable to the current hoist assembly.

Some of the websites searched included:

- <https://liftmoore.com/wp-content/uploads/F2593-0-2019-Liftmoore-Crane-Products-List.pdf>
- <https://www.torqhoist.com/product-category/hoists/winches/>
- <https://prowinch.com/>
- <https://www.alliedpower.com>
- <https://www.caldwellinc.com>
- <https://www.jdngroup.com>

9. Interested Sources: To date no additional sources have expressed interest in this item.

10. Other Facts: Procurement History:

Contract: SPRDL1-21-D-0023
Award Date: 04 January 2021
Contractor: Melton Sales & Service (authorized distributor of Grove U.S. LLC)
CAGE Code: 4X8W5
Contract Value: \$14,027,130
Competitive Status: FAR 6.302-1 only one responsible source

Contract: SPRDL1-20-C-0006
Award Date: 08 October 2019
Contractor: Melton Sales & Service (authorized distributor of Grove U.S. LLC)
CAGE Code: 4X8W5
Contract Value: \$842,265
Competitive Status: FAR 6.302-1 only one responsible source

Contract: SPRDL1-09-D-0044
Award Date: 19 August 2009
Contractor: Grove U.S. LLC
CAGE Code: 12361
Contract Value: \$1,922,100
Competitive Status: FAR 6.302-1 only one responsible source

11. Technical Certification: I certify that the supporting data under my cognizance which is included in the justification is accurate and complete to the best of my knowledge and belief.

Name: [REDACTED]
Title: Engineering Division Chief
Signature:

6/18/2025

X [REDACTED]
[REDACTED]

12. Requirement Certification: I certify that the supporting data under my cognizance which is included in the justification is accurate and complete to the best of my knowledge and belief.

Name: [REDACTED]
Title: Sourcing Division Chief
Signature:

6/20/2025

X [REDACTED]
[REDACTED]

13. Fair and Reasonable Cost Determination: I hereby determine that the anticipated cost to the Government for this contract action will be fair and reasonable. This determination will be based on the results of a detailed cost and/or price analysis. The contractor will not be required to submit certified cost or pricing data as this item has been determined to be a commercial product.

Name: Drake G. Martinez
Title: Contracting Officer
Signature:

6/17/2025

X Drake Martinez

Signed by: MARTINEZ.DRAKE.GREGORY [REDACTED]

14. Contracting Officer Certification: I certify that this justification is accurate and complete to the best of my knowledge and belief.

Name: Drake G. Martinez

Title: Contracting Officer

Signature:

6/17/2025

X

Drake Martinez

Signed by: MARTINEZ.DRAKE.GREGORY.

Approval Authority for Acquisitions Greater than \$750,000 but Less Than \$15M

APPROVAL OF JUSTIFICATION
FOR OTHER THAN FULL AND OPEN COMPETITION

Based on the foregoing Justification, I hereby approve the procurement of the following:

- a. Noun: Hoist Assembly, Truck
- b. NSN: 3950-01-213-1623
- c. Minimum Guaranteed Quantity: nine each
- d. Maximum Three-Year Quantity: 225 each
- e. Estimated Guaranteed Minimum Value: [REDACTED]
- f. Estimated Maximum Value: [REDACTED]

This action will be awarded under other than full and open competition basis pursuant to the authority of 10 U.S.C. 3204(a)(1) as implemented by FAR 6.302-1, and subject to the availability of funds. This approval is subject to the provision that the property herein described has otherwise been authorized for acquisition.

Signature:

6/16/2025

 Jamie Wiebusch

Competition Advocate
Signed by: DLA